

DATED

26 March

Completed 2003

CELEST A TRINCOM
Richard Butler
RICHARDS BUTLER, SOLICITORS
BEAUFORT HOUSE,
15 ST. BOTOLPH STREET
LONDON, EC4A 3EE

- (1) PROVIDE DEVELOPMENTS LTD, EC4A 3EE
- (2) ALLQUALITY LIMITED (IN ADMINISTRATIVE RECEIVERSHIP)
- (3) MICHAEL JOHNATHAN CHRISTOPHER OLDHAM AND MICHAEL JOHN HORE
- (4) MARTIN JOHN DARVILL

ORIGINAL/COUNTERPART

DEED OF EASEMENT

RELATING TO THE GRANT OF EASEMENTS IN
RESPECT OF RIGHTS OF WAY, THE PASSAGE OF
SERVICES AND OTHER RIGHTS AT LISCOMBE
PARK, SOULBURY

REFERENCE

CDB/0011526 - V7

WE HEREBY CERTIFY THAT THIS IS
A TRUE AND CORRECT COPY OF THE ORIGINAL

Neil Garland
18/7/03
NEIL GARLAND
10 NORWICH STREET
LONDON EC4A 1SD



BM241155



SEQ183



RICHARDS BUTLER

INTERNATIONAL LAW FIRM

Copy
Photo

PARTICULARS

Provide

Provide Developments Limited a company incorporated in England and Wales with registration number 4612362 whose registered office is situate at 10 Norwich Street, London, EC4A 1BD;

the Vendor

Allquality Limited (In Administrative Receivership) ("Allquality") a company incorporated in England and Wales with registration number 04025149 whose registered office is situate at Liscombe Park, Soulbury, Leighton Buzzard, Bedfordshire LU7 0JL (acting by the Receivers without personal responsibility);

and Martin John Darvill of Dairy Cottage, Liscombe Park, Soulbury ("Mr Darvill")

Provide's Land

the land and buildings at Liscombe Park in Soulbury as the same is more particularly described in Schedule 1 of this deed and as is for the purposes of indication only shown edged red on Plan 1;

the Vendor's Land

the land and buildings more particularly described in schedule 2 of this deed which was retained by the Vendor when some land was sold by the Vendor to Provide and as is for the purposes of indication only is shown

edged red on Plan 2;

The Receivers

**Michael Johnathan Christopher Oldham
and Michael John Hore of RSM Robson
Rhodes of 186 City Road, London EC1V
2NU**

DEED OF EASEMENT dated

26 March

2003

1 GRANT OF EASEMENT

- 1.1 Provide grants to the Vendor the rights set out in Schedule 3 (the 'Vendor Rights').
- 1.2 Allquality grants the Provide Rights to Provide so far as they relate to Allquality's Land.
- 1.3 Mr Darvill grants the Provide Rights to Provide so far as they relate to Mr Darvill's Land.
- 1.4 Unless otherwise stated the Rights are not granted exclusively and are granted in common with corresponding rights of Provide and other persons lawfully entitled to exercise such rights.

2 VENDOR'S COVENANTS

- 2.1 Allquality covenants (but not so as to render Allquality personally liable after it has parted with all interest in the Vendor's Land) with Provide to the intent that the burden of the covenant will run with and bind the Allquality Land and every part of it and so that the benefit of the covenant is annexed to and runs with that part of Provide's Land shown hatched black on Plan 1 to observe and perform at all times after the date of this Deed the covenants set out in Schedule 5.
- 2.2 Mr Darvill covenants (but not so as to render Mr Darvill personally liable after it has parted with all interest in the Vendor's Land) with Provide to the intent that the burden of the covenant will run with and bind Mr Darvill's Land and every part of it and so that the benefit of the covenant is annexed to and runs with that part of Provide's Land shown hatched black on Plan 1 to observe and perform at all times after the date of this Deed the covenants set out in Schedule 5.

3 COVENANTS BY PROVIDE

- 3.1** Provide covenants (but not so as to render Provide personally liable after it has parted with all interest in Provide's Land) with Allquality Limited and separately with Mr Darvill to the intent that the burden of the covenant will run with and bind Provide's Land and every part of it and so that the benefit of the covenant is annexed to and runs with Allquality's Land and Mr Darvill's Land respectively to observe and perform at all times after the date of this Deed the covenants set out in Schedule 6. For the avoidance of doubt, Provide and its successors in title have no liability to the owners of Mr Darvill's Land in respect of Allquality's Land and no liability to Allquality in respect of Mr Darvill's Land pursuant to the covenants by Provide set out in this Deed
- 3.2** Provide covenants with Mr Darvill and separately with Allquality Limited that it will at its own expense -
- (a) within two months of the date of this deed install a water meter at the location shown M' on Plan 3 on Provide's Land;
 - (b) within two months of becoming aware of the existence of other water pipes crossing the boundary between Provide's Land and the Vendor's Land install water meters at such other locations on Provide's Land;
 - (c) within two months of the date of this deed disconnect and stop up the foul drainage system at the location shown approximately 'S' on Plan 3;
 - (d) within two months of becoming aware of the existence of other foul drainage pipes which take sewage from Provide's Land onto the Vendor's Land disconnect them and stop them up so that foul sewerage no longer drains from Provide's Land to the Vendor's Land

4 REGISTRATION

4.1 Provide and the Vendor agree to apply to the Chief Land Registrar for entry of notice of the Rights in the Property and Charges register of the title numbers to their land as appurtenant to the land in those titles and undertake to effect the lodging of all Land and/or Charge Certificates as may be necessary at HM Land Registry;

4.2 The parties apply to the Chief Land Registrar to enter into the Proprietorship Register of the titles to the Vendor's Land a restriction in the following terms -

'Except under an order of the Registrar no disposition of or dealing with the Property or any part thereof resulting in a change of registered proprietor is to be registered unless there is delivered to HM Land Registry letter from a solicitor containing a declaration to the effect that the terms of paragraph 10 of Schedule 5 of a deed of easement dated */ 26 March / 2003* have been complied with.'

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4.3 The parties apply to the Chief Land Registrar to enter into the Proprietorship Register of the titles to Provide's Land a restriction in the following terms -

'Except under an order of the Registrar no disposition of or dealing with the Property or any part thereof resulting in a change in the registered proprietor is to be registered unless there is delivered to HM Land Registry letter from a solicitor containing a declaration to the effect that the terms of paragraph 7 of Schedule 6 of a deed of easement dated */ 26 March / 2003* have been complied with.'

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5 CONSIDERATION

Consideration for the grant of the Rights and the entry by the various parties into the covenants herein is the grant of the reciprocal Rights and covenants by the other parties hereto.

6 PROVIDE'S MORTGAGEE'S CONSENT

eb We [Close Brothers Limited] (Co. Reg. No 195626) of [10 Crown Place London EC2A 4FT] as proprietor of the charge dated 126 March 2014 and which will be registered in the charges registers of the title numbers of Provide's Land confirm the grant of the Rights and consent to the entries requested being made in the property and charges registers of those title numbers.

7 VENDOR'S MORTGAGEE'S CONSENT

plc We Close Brothers Limited, The Mortgage Business Limited and Martin John Darvill, Michael Gatting and Gregory Clifford Francis Tufnell as all of the proprietors of the charges registered in the charges registers of the title numbers of the Vendor's Land confirm the grant of the Rights and the entering into of covenants by the Vendor and consent to the entries requested being made in the property, proprietorship and charges registers of those title numbers.

8 PERPETUITIES

The Rights shall be exercisable only if they and their subject matter come into existence within a period of 80 years from the date of this Deed which period is to be the perpetuity period ('the Perpetuity Period') for the purposes of this Deed.

9 INTERPRETATION

9.1 The following rules of interpretation shall apply to the provisions of this Deed -

- (a) the Particulars form part of this Deed and the terms defined in the Particulars shall where used in this Deed have the same meaning as is given to them in the Particulars;
- (b) terms defined in parts of this Deed shall have the same meaning where used in other parts of this Deed;

- (c) an obligation of any party not to do or omit to do something operates also as an obligation not to permit or passively allow that thing to be done or omitted by any third party;
- (d) where Provide is required to pay a fair proportion of any costs the extent of that proportion is to be settled in the first instance by Provide's surveyor but if this is not agreed then by an independent surveyor chosen by both the Vendor and Provide jointly whose decision shall be binding except in the case of manifest error;
- (e) each clause of this Deed is distinct and severable from the other;
- (f) the headings shall not affect the interpretation of this Deed; and
- (g) words importing one gender shall be construed as importing any other gender;
- (h) the singular includes the plural and vice versa;
- (i) words importing persons shall include firms companies and corporations and vice versa;
- (j) where any party comprises two or more persons any obligation of that party shall be deemed to be joint and several obligations;
- (k) references to a clause or Schedule shall be construed as a reference to the relevant clause of or Schedule to this Deed.
- (l) in Schedules 3 and 4 reference to the Vendor's Land refer to Allquality's Land (so far as the relevant Rights relate thereto) and to Mr Darvill's Land (so far as the relevant Rights relate thereto).

9.2 In this Deed and the Recitals and Schedules the following words and expressions shall have the following meanings –

the Access Road: means the roads at Provide's Land shown coloured brown on Plan 1 and Plan 2 or such other road or roads over Provide's Land providing no less commodious access between the Vendor's Land and a highway maintained at public expense as the owner of Provide's Land from time to time may designate

the Allquality Land: means that part of the Vendor's Land registered in the name of Allquality and described in part 1 of Schedule 2;

the Car Park: means the car part at the location shown edged blue on Plan 1 or such other car park no less convenient for the then owner of the Vendor's Land as the owner from time to time of Provide's Land may designate within the 80 years from the date of this deed;

the Estate Roads: means the roads at Provide's Land now existing and also such other roads as may be constructed at Provide's Land within the Perpetuity Period between the Vendor's Land and a highway maintained at public expense;

Mr Darvill's Land: means that part of the Vendor's Land registered in the name of Mr Darvill and described in part 2 of Schedule 2;

Plan 1: means the plan attached marked 'Plan 1';

Plan 2: means the plan attached marked 'Plan 2';

Plan 3: means the plan attached marked 'Plan 3';

Permitted Use: means (subject to the provisions of this clause) the use of the Vendor's Land for any residential and/or commercial use which may include if the Vendor so decides the construction of an hotel and/or boarding house and once built the continuing use of the same. The parties further agree that:-

(i) (subject to (ii) below) the construction of at and/or use of the Vendor's Land or any part of it for the purposes of -

(a) a health club health spa leisure centre fitness centre swimming pool tennis courts squash courts; or

(b) for equestrian events (including Gymkhanas, Events, Dressage, Pony Trekking or Show Jumping) or for the accommodation or hiring of horses in exchange for payment

(whether in any such case as part of or in conjunction with the aforementioned hotel and boardinghouse or not) is not a Permitted Use; and

(ii) the construction of and/or use of the Vendor's Land or any part of it for the purposes of a health club health spa leisure centre fitness centre swimming pool tennis courts squash courts or for other sporting and/or recreational purposes in conjunction with the use of the Vendor's Land or part of it as one or more private dwellings only is a Permitted Use

the Provide Rights: means the rights granted for the benefit of Provide's Land set out in Schedule 4;

the Rights: means the Provide Rights and the Vendor Rights

the Water Pipes: means the water pipes laid under Provide's Land at the date of this deed including the water pipes along the approximate route shown in blue on Plan 1 and in blue on Plan 3

10 BOUNDARY DECLARATION

The boundaries marked "H" belong to the Vendor and form part of the Vendor's Land

11 CONTRACTS (RIGHTS OF THIRD PARTIES) ACT 1999

No term of this Agreement may be enforced solely by virtue of section 1 of the
Contracts (Rights of Third Parties) Act 1999

SCHEDULE 1

PROVIDE'S LAND

All that land and buildings shown edged red for identification purposes on Plan 1 at the Liscombe Park Estate, Leighton Buzzard, Bedfordshire as the same is registered at HM Land Registry under title numbers BM221189; BM230434 (part); BM230441; BM230442; BM230443; BM230444; BM230446; BM230447; BM230449 (part); BM230453; BM230454; BM230456; BM230458; BM241155 (part); BM241156; BM256618 (part)

SCHEDULE 2

THE VENDOR'S LAND

All that land and buildings shown edged red on Plan 2 for the purposes of identification and registered at HM Land Registry under the following title numbers -

Part 1: land registered in the name of Allquality Limited

BM221182; BM230434 (part); BM230449 (part), BM241155 (part);

Part 2: land registered in the name of Martin John Darvill

BM221183; BM230428; BM230437; BM253286; BM230440; BM250394; BM250396;
BM230436

SCHEDULE 3

VENDOR RIGHTS GRANTED

The following rights are granted by Provide to hold to the Vendor in fee simple for the benefit of the Vendor's Land and every part of it and to be exercisable by the Vendor and all persons authorised by it:

1 RIGHT OF WAY OVER ACCESS ROAD AND TO PARK IN CAR PARK

- 1.1 The right for the Vendor and its successors in title and assigns to pass and repass over the Access Road with or without vehicles or animals freely and uninterrupted in connection with the use of the Vendor's Land for the Permitted Use.
- 1.2 The right for the Vendor and persons authorised by the Vendor to park no more than five (5) cars or vans in the Car Park in connection with the use of the Vendor's Land for the Permitted Use.

2 RIGHT TO PASSAGE OF SERVICES

- 2.1 The right for the Vendor and its successors in title to the Vendor's Land to the free and uninterrupted passage and running of as much (but no more) water as currently passes onto the Vendor's Land through the Water Pipes now laid under Provide's Land for the use and enjoyment of the Vendor's Land for the Permitted Use provided that the owner of Provide's Land will not be liable to the owner of the Vendor's Land for any cessation or diminution of the supply of water not caused by the action of the owner of Provide's Land
- 2.2 The right (at the cost of the person exercising this right) during the Perpetuity Period to lay and install new water pipes ('the New Water Pipes') over Provide's Land, in a position to be agreed with the owners at the time of Provide's Land (such agreement not to be unreasonably withheld or delayed) to connect with any public water main as the then owner of the Vendor's Land shall decide.

3 RIGHT OF ENTRY TO REPAIR

The right for the Vendor at all reasonable times and upon not less than 48 hours' notice in writing (save in the case of an emergency when the Vendor will give as much notice as reasonably possible) to enter onto Provide's Land with or without workmen tools and materials for the purpose of repairing renewing maintaining supporting inspecting or cleansing the Water Pipes and/or the New Water Pipes causing as little damage and disturbance as possible and forthwith making good any damage so caused and to the extent that damage cannot be made good paying proper compensation to the owner of Provide's Land.

4 OTHER RIGHTS

- 4.1 The right to build or rebuild on the Vendor's Land or any part of it or alter any adjacent or neighbouring building on the Vendor's Land in connection with the Permitted Use so long as this building does not interfere with the rights of light or air over Provide's Land and does not cause excessive noise or any disruption to Provide's Land and is not anti-social
- 4.2 the right to let any land or building for the Permitted Use or otherwise deal with or use it for the Permitted Use so long as this does not interfere with the rights of light or air over Provide's Land and does not cause excessive noise or any disruption to Provide's Land and is not anti-social
- 4.3 Subject to sharing a reasonable proportion of the costs of repair and maintenance according to volume of user the right to use telephone cables and wires over, under and through Provide's Land and the free flow of electricity and telephone impulses through them at all times and for all purposes connected with the Permitted Use;
- 4.4 The right for the owner of the Vendor's Land at all reasonable times and upon not less than 48 hours notice in writing (save in case of emergency when as much notice as reasonably possible will be given) to enter onto Provide's Land with or without workmen tools and materials for the purpose of repairing, renewing, maintaining,

supporting, and inspecting the electricity and telephone cables and wires, supports and other apparatus serving the Vendor's Land (whether or not laid or erected before or after the date of this deed) causing as little damage and disturbance as possible and forthwith making good and damage so caused

- 4.5 Subject to the person exercising this right minimising the inconvenience to the owner of Provide's Land, the right to install such cabling or conduits as may in the future be necessary under a strip of land two metres wide on either side of the Estate Roads (or when reasonably necessary under the Estate Roads) to connect to such services as are or may become available in the public highway maintainable at public expense adjoining the Estate Roads, together with all necessary rights to enter onto Provide's Land to install, lay, repair and maintain, connect or replace such cabling or conduits during the Perpetuity Period, subject to minimising any damage caused to Provide's Land and making good so far as possible afterwards and (to the extent that such damage cannot be made good) paying proper compensation for damage caused, and afterwards to use such cabling and/or conduits for purposes connected with the Permitted Use.

SCHEDULE 4

RIGHTS GRANTED TO PROVIDE

The following rights are granted by the Vendor to hold to Provide and its successors in title in fee simple for the benefit of Provide's Land and every part of it and to be exercisable by Provide and its successors in title and all persons authorised by it and them-

- 1 The right to build or rebuild on Provide's Land or any part of it or alter any adjacent or neighbouring building on Provide's Land in any manner whatsoever so long as this building does not interfere with the rights of light or air over the Vendor's Land and does not cause excessive noise or any disruption to the Vendor's Land and is not anti-social;
- 2 The right to let any such land or building for any purpose or otherwise deal with or use it so long as this does not interfere with the rights of light or air over the Vendor's Land and does not cause excessive noise or any disruption to the Vendor's Land and is not anti-social;
- 3 The right for Provide to have the boundary structure along the boundary between Provide's Land and the Vendor's Land marked with an "H" on Plan 2 maintained and whenever reasonably necessary renewed by (and at the cost of) the Vendor and its successors in title provided that nothing in this paragraph compels the owner of the Vendor's Land to maintain and renew the boundary structure beyond the standard of the currently existing wall of the carport at the boundary marked "H"
- 4 (If the Vendor has not complied to a reasonable degree with the covenant set out at paragraph 8 of schedule 5) the right to enter such parts of the Vendors Land shown coloured green on Plan 2 to remove litter cut grass and carry out all such other acts as may be reasonably necessary to keep the said parts of the Vendor's Land in a neat and tidy condition;

- 5 The right to use electricity and telephone cables and wires over, under and through the Vendor's Land and the free flow of as much (but no more) electricity and telephone impulses as currently pass onto Provide's Land through them at times and for all purposes connected with the use of Provide's Land;
- 6 The right on giving not less than 48 hours notice to enter the Vendor's Land with workmen tools and materials to connect to electricity and telephone cables and wires from time to time and to lay underground and afterwards retain at locations previously approved by the owner of the Vendor's Land (such approval not to be unreasonably withheld or delayed) electricity and telephone cables and wires, supports and other apparatus reasonably necessary (the person exercising such rights making good any damage caused) and afterwards to the free flow of electricity and telephone impulses through such cables and wires;
- 7 The right for the owner of Provide's Land at all reasonable times and upon not less than 48 hours notice in writing (save in case of emergency when as much notice as reasonably possible will be given) to enter onto the Vendor's Land with or without workmen tools and materials for the purpose of repairing, renewing, maintaining, supporting, and inspecting the electricity and telephone cables and wires, supports and other apparatus serving Provide's Land (whether or not laid or erected before or after the date of this deed) causing as little damage and disturbance as possible and forthwith making good any damage so caused
- 8 A right of way on foot only for all purposes connected with the use and enjoyment of number 6 Rocklane Cottages as a private dwelling house in single family residence from the back door of number 6 Rocklane Cottages to and from the entry in the carport at the boundary shown "H" on Plan 2;